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Case Number: 25STCV16332 Hearing Date: July 17, 2026 Dept: 224

Leonard Madrid v. 2013 Marathon LLC

TENTATIVE RULING

The demurrer is OVERRULED as to the second, third, sixth, seventh, eighth, and ninth causes of action. The demurrer is SUSTAINED WITHOUT LEAVE TO AMEND as to the fourth cause of action. The demurrer is SUSTAINED WITH LEAVE TO AMEND as to the fifth, eleventh, thirteenth, fourteenth, and fifteenth causes of action.

The motion to strike is GRANTED WITH LEAVE TO AMEND.

Plaintiff shall file an amended pleading within 20 days.

The Case Management Conference is continued to November 10, 2026 at 8:30 a.m.

ANALYSIS

Introduction

On June 5, 2025, Plaintiff Leonard L. Madrid filed a Complaint in this action.

On June 9, 2025, Plaintiff filed the operative First Amended Complaint.

On April 17, 2026, Defendant Marathon 2013 LLC filed the instant Demurrer and Motion to Strike as to the First Amended Complaint.

On July 1, 2026, Plaintiff, now appearing in pro per, filed his Opposition

Meet and Confer

Before filing a demurrer or a motion to strike, the demurring or moving party is required to meet and confer with the party who filed the pleading demurred to or the pleading that is subject to the motion to strike for the purposes of determining whether an agreement can be reached through a filing of an amended pleading that would resolve the objections to be raised in the demurrer. (CCP §§ 430.41)

The Declaration of Vanessa L. Vinje, executed on April 17, 2026, sets forth the meet and confer efforts of counsel for the Defendant, and counsel's attempts to resolve the discovery dispute informally through written correspondence. Counsel received no response. The Court notes that the parties did not successfully meet and confer. However, the Court exercises its discretion to address the merits of the demurrer.

Legal Standard

A demurrer for sufficiency tests whether the complaint states a cause of action. (Hahn v. Mirda (2007) 147 Cal.App.4th 740, 747.) When considering demurrers, courts read the allegations liberally and in context. (Wilson v. Transit Authority of City of Sacramento (1962) 199 Cal.App.2d 716, 720-21.) In a demurrer proceeding, the defects must be apparent on the face of the pleading or via proper judicial notice. (Donabedian v. Mercury Ins. Co. (2004) 116 Cal.App.4th 968, 994.) "A demurrer tests the pleading alone, and not on the evidence or facts alleged." (E-Fab, Inc. v. Accountants, Inc. Servs. (2007) 153 Cal.App.4th 1308, 1315.) As such, the court assumes the truth of the complaint's properly pleaded or implied factual allegations. (Id.) The only issue a demurrer is concerned with is whether the complaint, as it stands, states a cause of action. (Hahn, supra, 147 Cal.App.4th at 747.)

Failure to State a Contract

Defendant demurs to the second (wrongful eviction), third (breach of implied warranty of habitability), sixth (retaliatory eviction), seventh (ADA disability discrimination), eighth (COVID-19 Tenant Relief Act), and ninth (breach of the covenant of quiet enjoyment) causes of action solely pursuant to Code of Civil Procedure section 430.10(g). That subdivision applies only to "an action founded upon a contract" in which it cannot be ascertained whether the contract is written, oral, or implied by conduct.

None of these causes of action requires a contract to stand. The implied warranty of habitability and the covenant of quiet enjoyment are imposed by law on every residential lease and do not arise from the terms of the parties' agreement. (Green v. Superior Court (1974) 10 Cal.3d 616, 31; Erlach, supra, 226 Cal.App.4th at p. 1299 [citing Civ. Code, § 1927].) The wrongful eviction, retaliatory eviction, ADA, and CTRA claims sound in statute and tort, not contract. (See Civ. Code, §§ 789.3, 1942.5.) Section 430.10(g) therefore does not reach them.

The demurrer also fails on its own terms. Even where a claim rests on a written agreement, a plaintiff may plead the legal effect of the contract rather than its precise language. (Construction Protective Services, Inc. v. TIG Specialty Ins. Co. (2002) 29 Cal.4th 189, 198-199.) The FAC alleges the lease inception date, monthly rent payments, and the resulting landlord-tenant relationship. (FAC ¶¶ 1-4.) That is sufficient at the pleading stage.

The demurrer to the second, third, sixth, seventh, eighth, and ninth causes of action is **OVERRULED**.

Fourth Cause of Action: Civil Code § 1941.1

Defendant contends section 1941.1 creates no independent cause of action and that the claim duplicates the third cause of action. The Court agrees. Civil Code section 1941.1 defines the conditions that render a dwelling untenable and supplies the standard for the implied warranty of habitability. It does not create a standalone cause of action separate from the habitability claim. The fourth cause of action is wholly duplicative of the third cause of action, which survives. The defect is legal and cannot be cured by amendment.

The demurrer to the fourth cause of action is SUSTAINED WITHOUT LEAVE TO AMEND.

Fifth Cause of Action: Fraud/Misrepresentation/Deceit

The elements of fraud are: “(a) misrepresentation (false representation, concealment, or nondisclosure); (b) knowledge of falsity (or ‘scienter’); (c) intent to defraud, i.e., to induce reliance; (d) justifiable reliance; and (e) resulting damage.” (Charnay v. Cobert (2006) 145 Cal.App.4th 170, 184.) In California, fraud, including negligent misrepresentation, must be pled with specificity. (Small v. Fritz Companies, Inc. (2003) 30 Cal.4th 167, 184.) “The particularity demands that a plaintiff plead facts which show how, when, where, to whom, and by what means the representations were tendered.” (Cansino v. Bank of America (2014) 224 Cal.App.4th 1462, 1469.)

Here, the FAC alleges only that “Defendants knowingly misrepresented” ERAP funds usage and “issued fraudulent notices,” that Defendants “may have criminal liability,” and that Plaintiff “relied on these intentional misrepresentations.” (FAC ¶¶ 32-34.) These allegations are conclusory as to the required elements, group the defendants together, and do not identify who made any representation, its content, or when it was made, with the requisite specificity.

The demurrer to the fifth cause of action is SUSTAINED WITH LEAVE TO AMEND.

Eleventh Cause of Action: Abuse of Process

“There are two main elements of a cause of action for abuse of process: first, an ulterior purpose, and second, a wilful act in the use of the process not proper in the regular conduct of the proceeding. Process is action taken pursuant to judicial authority. Merely obtaining or seeking process is not enough; there must be subsequent abuse, by a misuse of the judicial process for a purpose other than that which it was intended to serve. The gist of the tort is the improper use of the process after it is issued.” (Siam v. Kizilbash (2005) 130 Cal.App.4th 1563, 1580, cleaned up.)

The FAC alleges that Defendants “misused” three-day notices and “coerced” Plaintiff into an agreement to vacate. (FAC ¶ 53.) These are legal conclusions unsupported by facts identifying an ulterior purpose or a specific willful, improper act in the use of court process.

The demurrer to the eleventh cause of action is SUSTAINED WITH LEAVE TO AMEND.

Thirteenth Cause of Action: IIED

The elements of intentional infliction of emotional distress are: (1) the defendant engages in extreme and outrageous conduct with the intent to cause, or with reckless disregard for the probability of causing, emotional distress; (2) the plaintiff suffers extreme or severe emotional distress; and (3) the defendant's extreme and outrageous conduct was the actual and proximate cause of the plaintiff's extreme or severe emotional distress. (So v. Shin (2013) 212 Cal.App.4th 652, 671.) “Outrageous conduct is conduct that is intentional or reckless and so extreme as to exceed all bounds of decency in a civilized community. The defendant's conduct must be directed to the plaintiff, but malicious or evil purpose is not essential to liability.” (Ragland v. U.S. Bank National Assn. (2012) 209 Cal.App.4th 182, 204.)

The FAC alleges only that Defendants' “intentional eviction tactics and actions were outrageous” and that Plaintiff “has evidence of MDD and PTSD diagnoses.” (FAC ¶¶ 59-60.) These allegations are conclusory. The FAC does not describe the specific conduct, identify which defendant engaged in it, or state how the emotional distress manifested as a result of Defendant's conduct.

The demurrer to the thirteenth cause of action is SUSTAINED WITH LEAVE TO AMEND.

Fourteenth and Fifteenth Causes of Action: Unlawful Rent Increase LAMC § 151.32

Plaintiff's fourteenth and fifteenth causes of action are insufficiently pled. The FAC recites the ordinances and asserts that Defendant increased Plaintiff's rent during a prohibited period and failed to pay relocation assistance, but it alleges no facts establishing those violations, including the unit's coverage, the date and amount of any increase, or the basis for any entitlement to relocation. (FAC ¶¶ 62-64, 66-67.) Conclusory allegations that track the language of a statute, without facts, do not state a cause of action.

The demurrer to the fourteenth and fifteenth causes of action is SUSTAINED WITH LEAVE TO AMEND.

Motion to Strike

Demurring Defendant move to strike Plaintiff's prayers for and allegations related to punitive damages in the FAC, and Plaintiff's prayer for attorney's fees.

Punitive Damages

"In order to state a prima facie claim for punitive damages, a complaint must set forth the elements as stated in the general punitive damage statute, Civil Code section 3294." (Turman v. Turning Point of Central California, Inc. (2010) 191 Cal.App.4th 53, 63) The statutory elements for punitive damages require that a defendant is guilty of "fraud, oppression, or malice." (See Civ. Code, § 3294 (a).) Malice is conduct "intended by the defendant to cause injury to plaintiff, or despicable conduct that is carried on by the defendant with a willful and conscious disregard for the rights or safety of others." (Civ. Code, § 3294, subd. (c)(1).) "Oppression" means "despicable conduct that subjects a person to cruel and unjust hardship in conscious disregard of that person's rights." (Civ. Code, § 3294 subd. (c)(2).) "Fraud" is "an intentional misrepresentation, deceit, or concealment of a material fact known to the defendant with the intention on the part of the defendant of thereby depriving a person of property or legal rights or otherwise causing injury." (Civ. Code, § 3294 subd. (c)(3).)

In order to survive a motion to strike a prayer for punitive damages, a plaintiff must plead ultimate facts showing its entitlement to such relief. (Clauson v. Superior Court (1998) 67 Cal.App.4th 1253, 1255 (Clauson).) Allegations, devoid of any factual assertions, are insufficient to support a conclusion that parties acted with oppression, fraud, or malice. (Smith v. Superior Court (1992) 10 Cal.App.4th 1033, 1042.) "In ruling on a motion to strike, courts do not read allegations in isolation." (Clauson, supra, 67 Cal.App.4th at p. 1255.)

"The mere allegation an intentional tort was committed is not sufficient to warrant an award of punitive damages. [Citation.] Not only must there be circumstances of oppression, fraud or malice, but facts must be alleged in the pleading to support such a claim. [Citation.]" (Grieves v. Superior Court (1984) 157 Cal.App.3d 159, 166, fn. omitted.)

Here, the FAC prays for \$10,000,000 in punitive damages but pleads no ultimate facts supporting oppression, fraud, or malice. (FAC, Prayer ¶ c.) The supporting causes of action rest on conclusory characterizations rather than facts. As addressed above, the fraud cause of action is not pleaded with specificity, and the intentional infliction of emotional distress cause of action alleges only that Defendant's conduct was "outrageous" without describing the conduct or identifying which defendant engaged in it. Read in the context of the pleading as a whole, these allegations do not establish that any defendant acted with the oppression, fraud, or malice that Civil Code section 3294 requires. (Clauson, supra, 67 Cal.App.4th at p. 1255.)

The additional requirement of Civil Code section 3294, subdivision (b), is also unmet. Where the defendant is a corporate or entity defendant, the oppression, fraud, or malice must be committed, authorized, or ratified by an officer, director, or managing agent of the entity. The FAC pleads no facts identifying any such person or connecting the alleged wrongdoing to an officer, director, or managing agent of Defendant.

The motion to strike the punitive damages allegations and prayer is GRANTED WITH LEAVE TO AMEND.

Attorney's Fees

Code of Civil Procedure section 1021 provides for attorney's fees specifically provided by statute or by agreement between the parties. (Code Civ. Proc., § 1021.)

Plaintiff's prayer for "reasonable and statutory attorneys' fees" does not, as pled, identify the contractual or statutory basis for the request. (FAC, Prayer ¶ e.) Several of the causes of action alleged in the FAC rest on statutes that authorize an award of attorney's fees to a prevailing party, including the wrongful eviction claim (Civil Code section 789.3, subdivision (d)), the retaliatory eviction claim (Civil Code section 1942.5, subdivision (i)), the disability discrimination claim, and the municipal-code claims. If properly pled and ultimately proven, these theories can supply a statutory basis for a fee award.

The motion to strike the request for attorney's fees is therefore GRANTED WITH LEAVE TO AMEND.

Conclusion

For the reasons stated above, the demurrer is OVERRULED as to the second, third, sixth, seventh, eighth, and ninth causes of action. The demurrer is SUSTAINED WITHOUT LEAVE TO AMEND as to the fourth cause of action. The demurrer is SUSTAINED WITH LEAVE TO AMEND as to the fifth, eleventh, thirteenth, fourteenth, and fifteenth causes of action.

The motion to strike is GRANTED WITH LEAVE TO AMEND.

Plaintiff shall file an amended pleading within 20 days.

The Case Management Conference is continued to November 10, 2026 at 8:30 a.m.

Moving party to give notice.

Parties who intend to submit on this tentative must send an email to the Court at indicating intention to submit on the tentative, and copying all parties in the email communication. Please be advised that if you submit on the tentative and elect not to appear at the hearing, the opposing party may nevertheless appear at the hearing and argue the matter. Unless you receive a submission from all other parties in the matter, you should assume that others might appear at the hearing to argue. If the Court does not receive emails from the parties indicating submission on this tentative ruling and there are no appearances at the hearing, the Court will adopt the tentative as the final order, or take the matter off calendar at its discretion.